

Guidelines for Obtaining Permissions - June 2011

Goals

- **Ensure consistent use** of approved Permission Request form (a copy of which follows)
- **Eliminate or minimize use restrictions** granted by rights holders
- **Establish approval process** for limits or restrictions on rights grants

Best practice for Permissions Requests: obtain broad permissions without any restrictions, using Wiley's approved form.

- Permission grant should expressly state that it covers all media now known or hereafter developed.
- Permission should not contain any restrictions, specifically:
 - No geographic/market limitations
 - No "print only" requirement
 - No "current edition" restriction, or a clear process for relicensing for subsequent edition
 - No print run limitation
 - Language restrictions (eg English only) are to be avoided, but are acceptable if rights holder insists.

Important points to consider:

- Print run limitations: if a print run limitation is unavoidable and the Editor has determined that it is not possible to delete or find an alternative image or other content, then you should secure rights to either 100,000 copies or double the LIFETIME (not first year) sales estimate, whichever is GREATER.
- "Print run" must include all media—it cannot be limited to print versions.
- Do not accept limitations associated with 'first print run'.

Limitation of Liability language:

If a rights grantor will not agree to an unlimited permission, we must obtain their agreement to the attached amendment limiting Wiley's liability in the event of exceeding the restriction(s).

No Fly List:

We have created the attached "No Fly List" of photographers and agents that are especially difficult to work with or litigious. No photographs should be licensed from these photographers or agents, either directly or indirectly, unless special circumstances warrant and approval is obtained from the legal department. In order to avoid any "leakage," you must make sure to check that any images being considered for license from agents do not originate from any of the entities on the "No Fly List."

Author role:

If the author is responsible for obtaining permissions, they should use our approved request form. Authors should have our Author Guidelines (available on the Portal), and should be advised to

- Obtain broad permissions without any restrictions on medium, geography, editions, or language
- Seek Wiley's approval before accepting limitations on permissions
- Not use any of the photographers on the "No Fly List."

Invoices:

All invoices for permissions must be paid BEFORE files are released to the printer—the permissions process is not complete until invoices have been received and paid.

Record keeping:

The Editorial team is responsible for maintaining a complete list of all third party content in any product, including the source of the third party content and full Permissions records.

If Permissions forms come back from Rights Holders or Authors with changes or deletions, do NOT file them away or send them through for payment! Go back to the rights holder to say that we can't accept these restrictions, and have a discussion with them to expand our rights. If you are unable to secure unrestricted rights, reconsider whether this content is CRITICAL to include. If it is, send a copy to Deirdre Silver in Legal, with an email Subject line saying 'Permissions Restriction question'.

Permissions Request

(Date)

Company Name
Street Address
City, State, and ZIP Code

Dear _____:

We are writing in connection with the work, tentatively titled *Title* to be published by John Wiley & Sons, Inc. (“Wiley”), in (month/year).

We would like your permission to reproduce the following material:

(Supply full bibliographic information for the material in question.)

We are requesting your permission to include this material in the work mentioned above and in all future editions and revisions thereof, and in all derivative works, in all media now known or hereafter discovered throughout the world and in all languages whether published by Wiley or its licensees. These rights will in no way restrict publication of your material in any other form by you or by others authorized by you. **If you do not control these rights in their entirety, please inform us of the proper agency to contact.**

Please sign all three copies of this letter to confirm your permission on the terms stated in this letter, return two copies to us, and keep the third copy for your files. In signing, you also warrant that the images do not infringe or violate any copyright, right of privacy, or any other proprietary or personal, and do not contain any matter libelous or otherwise unlawful and you agree to indemnify and hold us, our assignees and our licensees harmless from all liability arising out of any actual or alleged breach of these warranties. Your prompt consideration of this request will be very much appreciated.

Sincerely,

Credit line to be used (if different

from citation given above): _____

Agreed to and accepted:

Your signature

Date

Amendment

The parties agree that the permission agreement (the "Agreement") dated _____ between [FILL IN APPLICABLE WILEY ENTITY] ("Wiley") and [FILL IN LICENSOR] ("Licensor") concerning _____ (the "Licensed Materials") is hereby amended to add the following:

Notwithstanding the foregoing, Wiley and Licensor agree that it would be impracticable and extremely difficult to ascertain the amount of actual damages caused by use of any Licensed Materials licensed hereunder outside the scope of the license granted. Therefore, Wiley and Licensor agree that, in the event of any claim arising out of the use of the Licensed Materials licensed hereunder outside the scope of the rights granted (for example, by way of illustration and not limitation, a use in excess of the print run amount specified above), Licensor's sole and exclusive remedy shall be payment of a fee equal to the applicable fee set forth above had Wiley licensed the use, increased pro rata based upon the actual use by Wiley. For example, if Wiley's use is 5% in excess of the print run limitation, the fee that shall be due to Licensor under this clause is the actual license fee set forth above for said use increased by 5%. If this Agreement does not set forth an applicable fee that equates to said use, the fee shall be the highest fee set forth in this Agreement. Wiley and Licensor further agree that fees calculated in accordance with this Paragraph represent reasonable compensation for the loss incurred by Licensor due to use of Licensed Materials outside the scope of the rights granted by this Agreement. The parties expressly waive any claims for statutory damages and attorneys' fees.

If a claim, dispute or difference of any kind whatsoever shall arise between Wiley and Licensor or any agent, employee, successor, or assign of either party (a "Dispute") in connection with, relating to, or arising out of this Agreement, the parties shall attempt to settle such Dispute in the first instance by mutual negotiation. If such Dispute has not been resolved by negotiation within thirty (30) days, the parties agree that any Dispute, whether related to this Agreement or otherwise, and any Dispute related to this Agreement or the relationship or duties contemplated under this Agreement, including but not limited to the validity of this arbitration clause or any copyright infringement claims arising out of Wiley's use of any Licensed Materials licensed hereunder, shall be resolved by binding arbitration by the American Arbitration Association, under the Arbitration Rules then in effect, in New York, New York. Any award of the arbitrator(s) may be entered as a judgment in any court of competent jurisdiction. This Agreement shall be interpreted under the Federal Arbitration Act and the laws of the State of New York, without regard to such State's conflict of law rules. Neither party shall be entitled to recover its costs or attorneys fees.

AGREED:

[NAME OF APPLICABLE WILEY ENTITY]

LICENSOR

By: _____
Name:
Title:

By: _____
Name:
Title:

No Fly List

- Alaska Stock (Very expensive rights managed collection. Ok to use from National Geographic collection or purchase their royalty-free pics.)
- Tom and Susan Bean
- Paul Chesley
- Brandon Cole
- DBA Stockphoto.com (Black Star Collection)
- Leo de Wys, Inc.
- Nicholas DeVore
- Dietrich Stock Photos
- Digital Arts Aspen
- DRK Photo
- Mark Gibson
- Joel Gordon
- Grant Heilman
- Renata Hiller
- Fred Hirschmann
- David Hiser
- Bianca Lavies
- Jay Maisel
- Mark Melton
- Jim Mendenhall
- Alexandra Milgram
- Bart Nagel
- Network Aspen
- David Muench
- Odyssey Photo (Very expensive)
- Gabe Palmer
- PhotoAspen (David Hiser agency)

- Louie Psihoyos
- Galen Rowell, Mountain Light Photography
- Bob Sacha
- Science Faction
- Tom Stack and Associates
- Unicorn Stock Photo
- Norbert Wu